

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

July 25, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Spiker and Mr. Valdez. Absent: Dr. Rinne. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Ash, agenda items #13 and 20(a) were removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #9 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 11, 2011. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, Jim Elias, Public Works Director, reviewed a voucher payable to Circle-S Aviation, LLC (\$26,525.00) for aerial weed spraying services at Belvoir Ranch and explained an annual spraying program for noxious weeds has been implemented, particularly to control larkspur, which is poisonous to cattle. He provided additional information on repair/replacement costs of well (water) pumps. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, 3307 Nationway, Cheyenne, Wyoming. (License currently held by Cheyenne OTB, LLC d/b/a Wyoming OTB, 3307 Nationway, Cheyenne, Wyoming.) Upon inquiry, Kevin Beers, applicant, reviewed tentative plans for the business and stated the license location for operation will not be changing. There being no further comments or input, Mayor Kaysen advised the purpose of the hearing had been met and closed the hearing. The application was referred to Finance Committee.

Mayor Kaysen opened a public meeting for the purpose of receiving public comment on the submission of a Section 5307 federal grant to fund transportation services by Cheyenne Transit for

fiscal year 2012. Joe Dougherty, Director, Cheyenne Transit Program, clarified this is an annual submission request for federal grant funding and the requested amount is \$744,355.00. Mr. Dougherty referenced a memorandum dated July 25, 2011 that he had submitted to members of the governing body regarding the grant request, noting last year's requested amount was \$807,660.00. There being no further comments or input, Mayor Kaysen advised the purpose of the hearing had been met and closed the hearing.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District (Conditional) to LI Light Industrial District for Lots 2 & 3, Block 1, Hutchins Corner, 2nd Filing, Cheyenne, Wyoming (located west of and adjacent to Hutchins Drive, south of Campstool Road). Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Motion carried. Voting "yes" -- all members of the governing body present.

Resolution authorizing the filing of an application with the Federal Transit Administration, an operating administration of the United States Department of Transportation, for Federal Transportation Assistance authorized by Title 49, United States Code, Section 5307 (Cheyenne Transit Program). Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present. (#5298)

[CA] Resolution certifying that the Governing Body of the City of Cheyenne approves of the Albin and Burns projects to be submitted to the State Loan and Investment Board for the 2011 Countywide Consensus Block Grant funding. Motion (per Consent Agenda) carried. (#5299)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for CFT Cheyenne Dell Range, a replat of a portion of Lot 1, Block One, Cole Fire Station Addition, Cheyenne, Wyoming (located north of Dell Range Boulevard, west of Grandview Avenue). Motion (per Consent Agenda) carried. (#5300)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for WYODIGS Properties Subdivision, a replat of Lots 5, 6, & 7, Block 4, Campstool Addition, Third Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of Industry Court and Industry Drive). Motion (per Consent Agenda) carried. (#5301)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Hospital Center, 1st Filing, a replat of Lots 1 thru 8, Block 138; Lots 1 thru 8, Block 139; Lots 1 thru 8, Block 172; Lots 1 thru 8, Block 173; Lots 1 thru 8, Block 200; vacated 16-foot alley in Blocks 138, 139, 172, 173, and 200; vacated 23rd Street between House Avenue and Evans Avenue; vacated House Avenue between 23rd Street and 24th Street; and House Avenue between 24th Street and 25th Street, Original City, Cheyenne, Wyoming (located between Warren and Evans Avenues and E. 22nd and 25th Streets). Mr. Collins moved to adopt, seconded by Ms. Ash. Motion carried. Voting "yes" -- all members of the governing body present. (#5302)

[CA] Resolution approving all loan documents for the State of Wyoming Drinking Water State Revolving Fund Loan #120 in the amount of \$9.4 million for the Southern Water Transmission Main

Phase II Project and authorizing the Mayor, City Clerk and Director of the Board of Public Utilities to execute all related loan documents. Motion (per Consent Agenda) carried. (#5303)

[CA] Resolution approving a project agreement with the Wyoming Water Development Commission for a grant in the amount of \$14,029,800 for the Southern Water Transmission Main Phase II Project and authorizing the Mayor, City Clerk and Director of the Board of Public Utilities to execute all related agreements and documents. Motion (per Consent Agenda) carried. (#5304)

[CA] Resolution approving Outside User Water/Sewer Services, by User's Agreement, with Three Rivers West, LLC, Lots 1-3, Block 2, Swan Ranch Rail Park, Third Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsors - Mr. Brown and Mr. Valdez).

[CA] Resolution approving the Annual Budget for Fiscal Year 2011-2012 of the Laramie County Community Juvenile Services Joint Powers Board -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution authorizing the Mayor to sign a Memorandum of Understanding with Laramie County to apply for the Edward Byrne Memorial Justice Assistance Grant Program -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program, for funding through the Downtown Development Grant Program to provide a utility corridor to encourage development of downtown business space -- referred to Finance Committee (sponsors - Mr. Brown and Dr. Rinne).

Preliminary PUD Planned Unit Development (Zone Change) from MR-1 Medium Density Residential-Established and P Public Districts for Blocks 138, 139, 172, 173 and 200, Original City, Cheyenne, Wyoming (located between E. 22nd and E. 25th Streets, east of Warren and west of Evans Avenues). Bill Green, Christine Kronz, Scott Brugger, Janice Floth and Sunny Kaste spoke in favor of the proposed PUD zone. Comments included support for a comprehensive cancer facility with parking availability at one location adjacent to the hospital, and economic benefits due to the hospital's proposed project. David Squires, Senior Vice-President, Cheyenne Regional Medical Center, noted that project plans will involve expansion of services, remodeling of certain areas, new building addition, and a parking structure, and briefly reviewed major areas that will be included in the project. Mr. Collins moved to acknowledge receipt, seconded by Ms. Broyles. Comment followed regarding the hospital's downtown location adjacent to a residential area, and suggestion that elements involving building heights, architectural and design plans, green space, and parking structure height, as worded in the PUD information affiliated with the agenda item, be clarified prior to the zone change ordinance being introduced on the agenda. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Land Lease Agreement and Memorandum of Land Lease Agreement between the City of Cheyenne and Verizon Wireless for installation and maintenance of a cell tower in North Cheyenne Community Park. Motion (per Consent Agenda) carried. (#5713)

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services. Motion (per Consent Agenda) carried. (#5714)

Agreement between the City of Cheyenne, Laramie County, and the Cheyenne Downtown Development Authority for the purpose of administering the terms and conditions of the U.S. Environmental Protection Agency (EPA) Brownfields Assessment Coalition Grant. Matt Ashby, Planning Services Director, advised a 2 week postponement of the item was requested to provide for Laramie County Commissioners' approval. Mr. Valdez moved to approve, seconded by Mr. Spiker. Mr. Valdez moved to postpone for 2 weeks (to Aug. 8, 2011), seconded by Mr. Spiker. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

[CA] Contract between the City of Cheyenne and Laramie County School District No. 1 for School Resource Officers for the 2011 - 2012 school year -- referred to Finance Committee.

[CA] Software Maintenance Agreement between the City of Cheyenne, Police Department, and New World Systems Corporation for standard software maintenance support services -- referred to Finance Committee.

[CA] Consideration of Grant Agreement for FAA Airport Improvement Program Project #3-56-0005-47 between the City of Cheyenne, the County of Laramie, and the Cheyenne Regional Airport Board for taxiway rehabilitation -- referred to Finance Committee.

[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, to host the 2011-2012 season at the City owned Ice and Events Center -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5697 between the City of Cheyenne and STC Construction Company for wear course for the Westland Road Overlay and Improvements Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-1-12 for a contract between the City of Cheyenne and Reiman Corporation and Subsidiary, Cheyenne, Wyoming, for the Ames Avenue Underpass Street Repairs Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

Retail liquor license applications filed with the City Clerk's Office by One East Sixteenth, LLC d/b/a TBD, 1601 Central Avenue; Cheyenne Depot Museum, Inc. d/b/a Cheyenne Depot Museum, 121 West 15th Street; MTM, Inc. d/b/a The Cowboy Grill (address not yet issued) to be located off Powderhouse Road between Spirit Lane and Gardenia Drive in The Pointe Plaza, and Let'er Buck Investment Group, LLC d/b/a Steamboat's (address not yet issued) to be located off Gardenia Drive between Yellowstone Road and El Camino Real in Cathedral Commons. James Yates, managing partner, Let'er Buck Investment Group, LLC, displayed an architectural drawing of the proposed building to be built and provided information on plans for the Wyoming-themed restaurant, stating the project is "shovel ready". He stated a retail type liquor license was important to be able to provide food and alcohol catering services, and indicated, if the license is approved, they would be willing to report to the governing body on a quarterly basis with regard to construction progress. Bill Murray, partner, One East Sixteenth, LLC, clarified their plans are to develop the building into a restaurant environment and it was not their desire to hold the liquor license, if approved, as a future investment. Mr. Yates expressed appreciation of One East Sixteenth's project and the developers' commitment to the downtown area. Mr. Valdez moved to approve one license to Let'er Buck Investment Group, LLC d/b/a

Steamboat's, with the condition that construction of the establishment must begin within 12 months from approval of the license or the license will revert to the City, and one license to One East Sixteenth, LLC d/b/a TBD [to be determined], with the condition that a signed lease agreement with a restaurant establishment to operate within the building must be signed within 12 months from approval of the license or the license will revert back to the City, seconded by Mr. Spiker. Discussion included retail liquor licenses as economic development tools; inclusion of reasonable conditions with the motion to approve, and factors considered by Finance Committee members in making their recommendation on recipients of the licenses, which included support for a license for the downtown area, a Wyoming-themed restaurant and operational utilization of the licenses in a timely manner. Upon request, Carol Intlekofer, City Clerk, re-stated the motion on the floor for clarification. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement -- referred to Finance Committee.

Announcement was made that the local Wyoming Chapter for Multiple Sclerosis Society will be sponsoring a Calcutta to be held August 18, 2011 beginning at 6:00 p.m. at Alf's Pub and Package Liquor, 1622 East 19th Street, Cheyenne, Wyoming, in conjunction with the Multiple Sclerosis Society/Alf's Pub Golf Tournament (Proceeds to benefit the local Multiple Sclerosis Society).

Announcement was made of the Appointment of Belinda Kolb to the Cheyenne Historic Preservation Board to be confirmed August 8, 2011.

Announcement was made of a Public Hearing to be held August 8, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive comments on the proposed sale of real property owned by the City of Cheyenne, described generally as Lot 2, Block 1, Cahill Park Addition (located at the southeast corner of Windmill Road and Dell Range Boulevard) to Menard, Inc. which would generate economic development benefits for the City of Cheyenne pursuant to Wyo. Stat. §15-1-112 (b). Estimated proposal value is \$7.2 million dollars.

Announcement was made of a Public Hearing to be held August 8, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to gather public comment in regards to the City of Cheyenne's intention to make application to the Wyoming Business Council, Business Ready Community Grant and Loan Program, for funding through the Downtown Development Grant Program for funding assistance to provide a utility corridor to encourage development of downtown business space.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:48 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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